DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Abandoned Property

Disposition of Property

Evidence Property Management

Evidence Custodian

Found Property

Packaging

Storage

EVIDENCE PROPERTY MANAGEMENT

I. POLICY

It is the policy of the Olivette Police Department to develop and maintain strict measures with respect to the handling, security, and disposition of property, and that any changes in its custody will be properly and fully documented.

II. RESPONSIBILITIES:

A. The impounding officer is the member of the Department who initially receives the evidence and initiates the chain of custody.

B. The Evidence Custodian is the Department member accountable for control and maintenance of all evidence accepted by or stored in the Department's Evidence Room and Temporary Holding Lockers.

C. The Evidence Room and Temporary Holding Lockers are the facilities utilized by the Department to store evidence. The Evidence Room is secured by a locked door and proximity card access control. A dual authentication method is used, meaning that to enter the Evidence Room, a proximity card must be presented to the card reader AND a proper code must be entered on the keypad. Entrance to the Evidence Room is also continuously monitored by the Department's surveillance system.

D. Entry to the Evidence Room is controlled to prevent loss, theft, alterations, unauthorized removal or any other compromise of evidence stored by the Department. Entry is limited to the Evidence Custodian. In extraordinary circumstances, (i.e. fire, fire sprinkler deployment, etc.) the Chief of Police and Deputy Chief may enter the Evidence Room to assess damage and protect items stored in the Room.

1. Other than the Evidence Custodian, authorized personnel having a need to enter the Evidence Room will complete the Evidence Room Sign-In Log immediately upon entering the Evidence Room and will sign out upon leaving the Evidence Room. The Evidence Custodian will be responsible for maintaining all Evidence Room sign-in/sign-out logs.

E. The Temporary Holding Lockers are secured by officers after submitting evidence/property. Once secured, the Temporary Holding Lockers can only be accessed from inside the Evidence Room by the Evidence Custodian.

F. Physical Evidence is any substance or material found or recovered in connection with a criminal investigation.

G. Property management is the responsibility of the Evidence Custodian, who has primary responsibility of property control. The Property Management System includes property in custody, found, recovered, and evidentiary property.

H. The Evidence Custodian shall be accountable for control of all property accepted by or stored in the Department's property storage area(s). The Evidence Custodian shall be responsible for receiving, storing, maintaining, releasing, and accounting for all evidence in compliance with established Department policy.

III. ADMINISTRATION AND OPERATIONS:

A. The following procedures have been established for receiving in-custody and evidentiary property by members into Agency control to include:

1. Officer Responsibility - Officers will complete an Olivette Police Department Evidence envelope or other adequate form of packaging and provide a descriptive inventory of every item of evidence/property coming into their possession as a result of their official duties and responsibilities. If required, a St. Louis County Police Department Evidence Receipt Form will accompany the packaged evidence/property. The officer will then secure the evidence in one of the Temporary Holding Lockers prior to their tour of duty ending for that day. The officer will note the Temporary Holding Locker number in the narrative of his/her police report and a voicemail message will be left for the Evidence Custodian advising of the evidence. Perishable evidence (i.e. blood) will be secured in Temporary Holding Locker #5, as it is refrigerated. This will also be noted in the police report narrative and a voicemail message will be left for the Bureau of Investigations advising of the evidence.

2. As the Bureau of Investigations is routinely responsible for delivering certain evidence to the crime laboratory, it will be the responsibility of a detective to notify the Evidence Custodian of any appointments made for the crime lab. Once notified, the Evidence Custodian will place the appropriate evidence in the refrigerator located in the Evidence Packaging area and secure the lock. The evidence will be retrieved by the Bureau of Investigations and delivered to the appropriate crime laboratory. Evidence receipts will be completed appropriately.

3. Officers that need to secure evidence in the Blood Dry or Exterior Large Evidence Area will use the following procedure:

a. Notify the watch commander, who will retrieve the appropriate prox card from the key box in the Roll Call room.

b. Use the prox card to access the desired evidence storage area.

c. Secure the evidence inside the appropriate area.

d. Drop the prox card into Evidence Locker #2.

e. Notify the Evidence Custodian about the evidence.

f. Officers will note in the narrative of the police report in which area the evidence was secured.

Once the evidence is retrieved, the Evidence Custodian will return the prox card to the key box. If evidence needs to be secured in the Blood Dry or Exterior Large Evidence Area, but access is denied because there is already evidence in one of those rooms, officers should notify the Evidence Custodian who will respond to the station to remove the evidence from the area(s) and secure all evidence in the Evidence room.

4. Officers will enter all evidence/property into the PMI Evidence Tracker evidence system prior to placing the evidence/property into a Temporary Holding Locker:

a. The Evidence Custodian will retrieve the property from the Temporary Holding Lockers and place it into the Department's inventory.

b. Perishable evidence will be requested from the Evidence Custodian by any officer(usually a detective) of this Agency designated to transfer the evidence to the Missouri State Highway Patrol Crime Laboratory or other approved facility.

c. Once the property has been officially placed under the Department's control, the property can only be released for:

1. Further investigation,

2. Court release,

3. Other official purposes, or

4. Returning to the owner.

d. The release will be made by the Evidence Custodian of the property needed. The Evidence Custodian will batch-out the requested evidence/property in the PMI Evidence Tracker evidence system indicating the date, time, reason, and officer receiving the evidence/property. If property is released to the property owner, a Property Receipt Form #OPD – F1040 will be completed and filed with the police report.

e. The chain of custody documentation ensures accountability and/or uninterrupted chain of custody until final disposition.

f. Officers are prohibited at all times from storing evidence in desks, lockers, vehicles, or other places that are not secure, or would interrupt the chain of custody.

g. Evidence returned from court or the crime laboratory will be placed in a Temporary Holding Locker for retrieval by the Evidence Custodian. The securing officer may leave a voicemail message for the Evidence Custodian. The Evidence Custodian will then batch-in the evidence/property in the PMI Evidence Tracker evidence system and return the evidence/property to the Evidence Room.

h. Personal use of any evidence is prohibited.

5. The officer submitting property into evidence will complete a police report containing the following information:

a. Accurate record of events that transpired at the scene in connection with the investigation,

b. Location of the crime,

c. Name of victim(s), if known,

d. Name of suspect(s), if known,

e. Report number,

f. Circumstances detailing how the evidence came into possession of the Police Department, and

g. Detailed description of items - Give as much information about the evidence as possible including the location where the item(s) was found. The description should include:

1) Make,

2) Model or model number, if known,

3) Serial number,

4) Color(s), and

5) Unique characteristics, markings, etc.

IV. STORAGE AND PACKAGING:

A. Secure storage areas for particular items are located within the Evidence Room and have been established for handling valuable and sensitive items of evidence.

1. Firearms, money, jewelry, precious metals, and drugs, etc. are stored in secured rooms within the Evidence Room. Drugs will be stored in the Drug Room and firearms, money, jewelry, precious metals, etc. will be stored in the Arms/Cash room.

2. Bicycles will be stored inside the Large Storage Room within the Evidence Room.

3. Vehicles will be towed to the appropriate tow lot. If processing is required, an officer may respond immediately, or a "Hold" can be placed on the vehicle until it can be processed.

B. The PMI Evidence Tracker evidence barcoded system is used by this command to maintain evidence/property records. Evidence/property is entered into the system by the officer who seized the evidence/property. The PMI Evidence Tracker evidence system is maintained by the Evidence Custodian. The PMI Evidence Tracker system reflects the status of the evidence/property held by the Department. The status information reflected is:

1. Report number;

2. CAD number;

3. Tracking number;

4. Offense/Incident location;

5. Number of packages;

6. Offense;

7. Evidence Description;

8. Evidence Type;

9. Victim/Complainant;

10. Suspect;

11. Date;

12. Officers DSN;

13. Seized Location;

14. Transported by;

15. Reason seized;

16. Temporary Location;

17. Evidence Room Location;

18. Case Status;

19. Disposition;

20. Date of Disposition; and

21. Notes.

V. DISPOSITION OF PROPERTY:

A. Whenever possible, release of property back to the owner should be affected as expeditiously as is consistent with applicable law. Prompt, authorized property removal (final disposition/destruction) prevents an overload on the property management system

and reduces the requirement for additional storage space. Also, lack of prompt disposition procedures further deprives owners of the use of their property.

B. The investigating officer will make every attempt to identify the owner(s) of found or stolen property by such means as performing computer checks on serial numbers, information from prior police reports, identification markings/information, etc. If property is recovered and the owner is identified, the officer will attempt to notify the owner of the property by telephone or by letter that their property is in the custody of the Police Department, and they can respond to the Department for property release (through proper verification of owner).

C. With the prosecutor's approval, and based on the Missouri Criminal Code, prompt photographing and return of the property to victims will be accomplished whenever the physical evidence is not needed in a court case, and the photograph is acceptable for evidentiary purposes.

1. In any prosecution for wrongful taking, photographs of the personal property alleged to have been wrongfully taken shall be deemed competent evidence of such personal property and shall be admissible in any proceeding, hearing or trial of the case to the same extent as if such property had been introduced as evidence. In addition to the personal property, such photographs shall clearly depict the police report number.

2. It should be noted that when photographs are to be used in the place of the actual physical evidence or personal property, the photograph is to be attached to a Property Receipt Form #OPD – F1040, signed by the property owner/agent. The photo and receipt are then properly marked and packaged as evidence and submitted to the Evidence Custodian for safekeeping.

D. Seized property must have a claim filed for return within 30 days from the date obtained. The property placed into the evidence room will be disposed of as follows:

1. Returned - This is property that may be released to the owner after the proper identification is made to verify ownership.

2. Sold - If such property has remained unclaimed for more than 30 days, said property may be sold at public auction by the Chief of Police, which said public auction shall be held at the City Hall and ten (10) days' notice of which said public auction shall be published in a newspaper of general circulation in St. Louis County.

If no bids are received at such public sale, the property may be sold at a private sale for the best price offered. Any property for which no bid is received at public or private sale shall be destroyed by the Police Department, and a certificate thereof shall be filed with the City Clerk. (Section 200.030)

3. Destroyable - Property that cannot be returned to the owner. The property is either illegal to possess, ownership is unknown, or property has no value.

4. The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number.

E. Handguns, rifles, and/or shotguns will be returned to the rightful owner only upon proof of ownership or written authority from the prosecutor.

1. Firearms must be claimed within 30 days from the date of seizure.

2. The firearm will not be returned if it was used in the commission of a felony. A court order is required for return.

3. The firearm will not be returned to a person having previous felony convictions.

4. Firearms that do not meet established standards for safety or have altered serial numbers shall be destroyed.

5. The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number.

F. The Evidence Custodian shall make every effort to identify and notify the owner, or custodian of the property, for any returnable items that are not illegal to possess.

1. Specified time to collect the items(s) is 30 days from the date of recovery.

2. Final release requires proof of ownership, Bill of Sale, Receipt, or a detailed description of property, which in the judgment of the Evidence Custodian would only be known to the rightful owner or representative in control. A court order may be required when no other means are available to show ownership.

3. Final disposition of found, recovered, and evidentiary property should be accomplished within six (6) months after legal requirements have been satisfied.

4. The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number.

G. Illegal weapons as defined in Federal Statute, State Statute, or Municipal Ordinance, and seized by the Department, shall be reported to the Bureau of Alcohol, Tobacco, and Firearms and the United States Treasury, and these weapons shall be relinquished to either agency if requested.

1. All weapons that are not returned to the owner shall be retained by the Evidence Custodian.

2. A court order will be issued by a Judge of the St. Louis County Circuit Court authorizing the destruction of weapons.

3. The Evidence Custodian will submit a memorandum and a copy of the receipt to the Deputy Chief documenting the destruction.

4. The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number.

H. Narcotics contraband seized shall be conveyed to the St. Louis County Police Department Crime Laboratory for analysis and safekeeping. Marijuana charges of less than 35 grams will not be accepted by the Laboratory.

1. After State cases are disposed of, the Crime Laboratory will return the contraband to this Command.

2. A court order from the St. Louis County Prosecutor will be obtained authorizing the destruction of the contraband.

3. The contraband, along with the court order, will be conveyed back to the Crime Laboratory for destruction. A receipt will be obtained.

4. After Municipal cases are disposed of, the City Prosecutor or the St. Louis County Prosecutor may issue the court order for destruction of the contraband. The contraband, along with the court order, will then be conveyed to the Crime Laboratory for destruction. A receipt will be obtained.

5. The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number.

I. Seized and/or forfeited property, including controlled substances, weapons and explosives will not be used by Department personnel for investigative or training purposes.

J. Monies seized by this Department shall be returned to the rightful owner upon proof of ownership, or written authority by the prosecutor or court order.

All money or cash coming into the possession of the Police Department of the City of Olivette from any source whatsoever which has remained unclaimed for a period of 30 days shall be delivered to the City Clerk and shall be held in a separate fund thereafter under the supervision of the City Clerk for a period of one year.

1. If said money or cash is claimed within said period of one year, it shall be delivered to the person exhibiting satisfactory proof of ownership of the fund.

2. If said money is not claimed within said period, it shall become a part of the general revenue of the City of Olivette (Section 200.040).

3**.** The disposition and filing will be noted in the PMI Evidence Tracker system under the relevant report number

VI. FOUND OR ABANDONED PROPERTY (EXCEPT MOTOR VEHICLES)

A. Definitions

1. Abandoned Property - Any property to which the true owner has, in writing, declared his intention to relinquish any claim or right thereto, or any unclaimed property which has been held for at least one year.

2. Found Property - Any property which comes into possession of a Department employee but does not play any part in a specific crime.

B. Department employees who seize found property or abandoned property shall make every attempt to locate the owner and release the property.

1. Owner located: Upon locating the owner of found or abandoned property, a Department property receipt form (OPD – F1040) will be completed upon release of said property.

2. Owner not located: Found or abandoned property, in which all means have been exhausted in contacting the owner, will be entered into the PMI Evidence Tracker System, properly packaged and placed in an evidence locker. Bicycles will be entered into the PMI Evidence Tracker System, properly tagged and secured in the Large Storage Room within the Evidence Room.

C. When an investigation reveals that found or abandoned property is associated with a violation of the law, that property will be handled as evidence.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
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